

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-1839

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF KATHLEEN FRIEL, LICENSE NO. LPC 11399,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Kathleen Friel ("Respondent"), as follows:

- 1. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on February 25, 2013, having been issued license number LPC 11399, and is currently so licensed.**
- 2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").**
- 3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaint in case number 2018-1839 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2018-1839. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.**
- 4. Respondent admits the following:**
 - a. Respondent failed to comply with her Continuing Professional Development ("CPD") requirements during the 2015-2017 renewal cycle.**
- 5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §§12-43-222(1)(b) and 12-43-605(1)(a), C.R.S., and Board Rule 18, which state:**

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

12-43-605. Continuing professional competency - board rules. (1)(a) In accordance with section 12-43-603, the board issues a license to practice professional counseling based on whether the applicant satisfies minimum educational and experience requirements that demonstrate professional competency to practice professional counseling. After a license is issued to an applicant, the licensed professional counselor shall maintain continuing professional competency to practice professional counseling.

Rule 18 - Continuing Professional Competence. Effective January 1, 2011, licensed professional counselors shall demonstrate continuing professional competence through participation and compliance with the Continuing Professional Development program in order to renew, reinstate or reactivate a license to practice professional counseling in the State of Colorado.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

RELINQUISHMENT

7. Respondent hereby relinquishes her license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of §12-43-224(3)(a)(II), C.R.S.

8. Following relinquishment of her LPC, Respondent shall not perform any act requiring a license to practice.

9. Respondent understands that if she applies for licensure at any future time, Respondent will be required to comply with all criteria for initial licensure that exist at the time of application.

10. Respondent also agrees not to register as a psychotherapist in the State of Colorado nor will Respondent perform any act constituting psychotherapy as defined under §12-43-201(9), C.R.S.

TERMS AND CONDITIONS

11. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

13. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. Respondent shall obey all state and federal laws while this Order is in effect.

17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

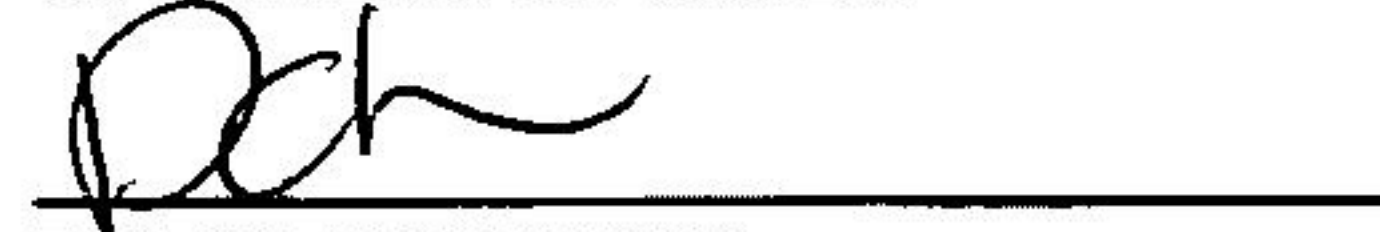
AGREED TO AND ACCEPTED BY:

RESPONDENT


KATHLEEN FRIEL
LPC 11399

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 27th day of August,
2018.